

CASE SUMMARY

State v. Narpal

Ct. Case No. 767/2023 | CNR DLSW01-008472-2023 | Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi
JUDGE	Ms. Harleen Singh, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: date of inspection)
PARTIES	State (BSES Rajdhani Power Ltd.) v. Narpal (alleged user) — the registered consumer (Satvir Singh) having been dropped mid-trial
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. The registered consumer was dropped without explanation, the meter and bills pertained to him, and the accused’s own consumer status was never established. The accused stands acquitted of the charge under Sections 135, 151 and 154 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused Narpal dishonestly abstracted electricity at the inspected premises, so as to attract Sections 135/151/154 of the Electricity Act, 2003; and whether the prosecution established that he — rather than the dropped registered consumer — was the consumer/user under Section 2(15).

FACTS

BSES Rajdhani alleged theft (assessed at about Rs. 7.53 lakh). The registered consumer (accused no. 2, Satvir Singh) was dropped from the case mid-trial with no explanation; yet the meter (No. 40432523) stood in his name, and the consumption pattern and the bills both pertained to him, not to accused no. 1. The material technician-witness (Suneel Kumar) was not examined; the videography was prepared in intervals rather than continuously and was not fully filed; and the Section 65B certificate was defective (a pre-printed form with no studio stamp, no computer or memory-card particulars). The alleged illegal cables were not seized despite police presence, and the Board Resolution authorising the CEO was not filed.

On a complaint under Sections 135/151/154, the accused pleaded not guilty. The contradictions and the withholding of the technician emerged in cross-examination. Under Section 313 Cr.P.C. the accused denied the allegations.

REASONING OF THE COURT

HEADNOTE

Where the registered consumer — in whose name the meter, the consumption and the bills all stood — is dropped mid-trial without explanation, and the remaining accused's status as consumer under Section 2(15) is never established, the theft charge cannot stand; defective Section 65B certification, a withheld technician and unseized cables compound the failure of proof.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The consumer was dropped, yet the meter and bills were his. The registered consumer was dropped mid-trial without explanation, although the meter stood in his name and both the consumption pattern and the bills pertained to him; the prosecution never established that the remaining accused was the consumer/user under Section 2(15).

The electronic record was defectively certified. The videography was prepared in intervals, not continuously, and was not fully filed, and the Section 65B certificate was a pre-printed form bearing no studio stamp and no computer or memory-card particulars — the certificate did not satisfy the statutory conditions for admissibility.

The material technician was withheld and no cable seized. The technician who alone could speak to the wiring was not examined, and no allegedly illegal cable was seized despite police presence; the primary and corroborative proof of the tap were both absent.

The cumulative doubt entitled the accused to acquittal. With the registered consumer dropped though the meter and bills were his, the remaining accused's consumer status unproved, a defective Section 65B certificate and a withheld technician, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Sections 135, 151 and 154 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user's identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section

65B, or the officer’s authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — the registered consumer dropped though the meter and bills were his, the remaining accused’s consumer status unproved, a defective Section 65B certificate and a withheld technician — the charge under Sections 135, 151 and 154 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

An acquittal where the true consumer was dropped and the case against the wrong person collapsed. Four propositions stand out:

- **Dropping the real consumer can sink the case.** Where the meter, consumption and bills belong to the dropped accused, the person left in the dock may not be the “consumer” at all (Section 2(15)).
- **A defective Section 65B certificate excludes the video.** Interval videography and a pre-printed certificate without device particulars fail the admissibility conditions.
- **Withholding the technician is fatal in a wiring case.** The one witness who could prove the tap must be examined.
- **Unseized cables leave the tap unproved.** Police presence with no seizure undercuts the very existence of the illegal connection.

CITATIONS

The decision turned wholly on the evidence; neither side pressed any case authority, and the Court decided the matter on the record before it.

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.